

The motion is granted, with withdrawal effective only upon prompt service on the client of the signed order and no sooner than as indicated herein. Counsel shall continue to represent the Plaintiff Ronnie Baker through and including the Demurrer hearing which is currently scheduled for September 18, 2026.

DAILEY v. SOLANO COUNTY SHERIFF, ET AL.
Case No. FCS058487

Motion for Leave to File “First” Amended Complaint

TENTATIVE RULING

Plaintiff’s motion for leave to file the proposed amended complaint is granted. The second amended complaint that was wrongfully filed on July 7, 2026 shall be deemed to be filed on the date of filing of the formal order granting this motion.

Courts should apply a policy of great liberality in permitting amendment to a pleading at any stage of the proceedings as long as no prejudice has been shown to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.) The party claiming to be prejudiced has the burden of demonstrating that prejudice. (See, *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159 [court did not abuse its discretion because the defendants did not make an adequate showing of prejudice].) As long as proposed amendments relate to the same general set of facts, the introduction of new legal theories should not bar amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Although Plaintiff improperly served a new and different version of the second amended complaint than the proposed amended pleading that had originally been lodged with Plaintiff’s motion, this latest version of the second amended complaint is still based on the same basic facts as the original complaint. All four of the “causes of action” now attempted to be alleged are merely different legal theories for recovery for the same injuries Plaintiff sustained while being transported by Defendant Duffield.

Defendants have made no showing that they would be substantially prejudiced by the grant of leave to amend. To the extent Defendants argue that Plaintiff’s assault and battery claims have been defectively pleaded, Defendants are free to challenge the sufficiency of the amended pleading by demurrer, motion for judgment on the pleadings, or other appropriate proceeding.

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